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CASE #	CASE NAME	HEARING NAME
CVPS2501784	KG MULLEN INC., A CALIFORNIA CORPORATION VS FAWAZ, AN INDIVIDUAL	MOTION TO VACATE DEFAULT BY MOET FAWAZ, AN INDIVIDUAL

Tentative Ruling: Granted.

Court to provide notice pursuant to CCP 1019.5.

Default on cross complaint of Moet Fawaz on October 18, 2025 is ordered vacated and set aside.

This is a matter involving the sale of real property that was encumbered with a mechanic's lien case. It is alleged that on February 22, 2022, Plaintiff KG Mullen, Inc. ("Plaintiff") entered into a written contract with Defendant Isabella and Moet Fawaz ("Fawaz") whereby Plaintiff agreed to provide specified construction-related services including labor and materials necessary for the substantial improvements to a residential property in Palm Desert, California ("Subject Property"). Over the course of the construction project, the scope of the work was modified through written and verbal change orders that increased the cost of the project. Plaintiff alleges that Fawaz failed to make all payments. As a result, Plaintiff was unable to complete all work on the project. On December 17, 2024, Plaintiff recorded a mechanic's lien against the Subject Property. On December 23, 2024, Fawaz transferred titled to the Subject Property to Defendants Rebecca and Jonathan Polaks ("Defendants" or "Polaks").

Plaintiff filed their Complaint on March 14, 2025, and the operative Second Amended Complaint ("SAC") on August 1, 2026. The SAC includes six causes of action for: (1) Breach of Contract; (2) Foreclosure of Mechanic' Lien; (3) Quantum Meruit and Quantum Valebant; (4) Account Stated; (5) Open Book Account; and (6) Unjust Enrichment. On September 29, 2025, the Polaks filed a Cross-Complaint against the Fawaz for: (1) Equitable Indemnification; (2) Contribution; and (3) Fraud.

Moving Defendant, Moet Fawaz, seeks to set aside default previously entered on October 18, 2025, after he was personally served).

Here, the court finds that proper service was effectuated on Defendant Moet Fawaz on October 18, 2025. There is not anything in the moving papers refuting the photographic evidence of his service. Like his daughter, he was served at the address obtained from the underlying contract in this suit (Exhibit 5 Contract Proposal to Cross Complaint's Opp.) The proof required to set aside the default for invalid service is woefully lacking.

As to discretionary relief pursuant to CCP 473.5. There is a strong judicial preference for matters to be decided on their merits when possible. Defendant Moet Fawaz appears to have waited over 6 months to bring the instant request for relief. However, there is a proposed answer submitted with his moving papers. The court will exercise discretion and set aside the default with an order that the proposed answer be filed within 5 days of this order becoming final.

Moving Defendant Moet Fawaz is ordered to pay Cross Complainant \$1,000.00 within 30 days of this order becoming final. The court is empowered to grant relief on “whatever terms may be just.” (CCP 473.5(c).) The court encourages all parties moving forward to be diligent in their responses to the underlying lawsuit.